

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

Altaf Hussain etc.

14.05.2025 Malik Arab Hassan Asif, Advocate for the appellants.

Through this appeal, the appellants have assailed the judgment and decree dated 04.03.2025 passed by learned Appellate Court.

2. The brief facts of the case are that appellants filed a suit for declaration against respondents No.1 to 3 averring therein that they are legal heirs of Riaz Hussain Nazi and are entitled to inherit shares from the legacy of deceased Dost Muhammad. They contacted the respondents for the transfer of suit property of their shares through inheritance mutation. On the assurance of respondent No.3 that the inheritance mutation of deceased Dost Muhammad has been duly executed, and being legal heirs of deceased Riaz Hussain, respondents had also transferred their shares through inheritance mutation in the revenue record. Reposing trust in respondent No.3, the appellants agreed to sell out their shares and contacted respondents who showed their willingness to purchase the same but they delayed the matter and thereafter through fraud and forgery, managed to get registered sale deeds No.1559/1 and 1560/1 both dated 10.06.2006 and subsequent thereto got attested the mutations No.12313 and 12936 both dated

30.06.2006, which is alleged to be inoperative upon rights of the appellants. The suit was contested by respondents by filing contesting written statement.

3. The learned Trial Court out of the divergent pleadings framed as many as five issues and invited the parties to produce their respective evidence, which they adduced and after appreciating the same, the learned Trial Court dismissed the suit of the appellants. Being aggrieved, they filed an appeal before the learned Appellate Court, which was accepted and the appellants were allowed to amend the plaint and the matter was remanded to the learned Trial Court for decision afresh. Hence this appeal.

4. Learned counsel for the appellants contends that the impugned remand order/judgment passed by the learned Appellate Court is illegal; that the learned Appellate Court had to proceed with the case itself after obtaining amended plaint and examination of required evidence; that the decision of the learned Appellate Court is contrary to law and suffers from a procedural defect; and that the order/judgment passed by learned Appellate Court is a result of substantial error, therefore, the same is not sustainable in the eyes of law.

5. Arguments heard and record perused.

6. Upon examination of the record, it is evident that the appellants initiated a suit for declaration, contesting the registered deed in favor of respondents/defendants No. 1 and 2, while asserting entitlement to a share in the estate of their grandfather Dost Muhammad.

7. The trial court in its judgment and decree dated 19.09.2022 while dismissing the case of the appellants also observed that the appellants had claimed a share in their grandfather's property, asserting that it should be distributed among all legal heirs of the deceased, Dost Muhammad, according to law, however, the appellants failed to implead all the legal heirs of Dost

Muhammad as necessary parties to the suit, which constituted a legal defect.

8. The appellants filed appeal against the judgment and decree dated 19.09.2022 before the appellate court and they themselves filed an application for impleadment of parties before the learned Appellate Court, asserting that their inclusion was indispensable for just adjudication of the dispute as they are also legal heirs of deceased Dost Muhammad.

9. The Appellate Court allowed the appellants' application to implead the additional parties and remanded the case to the trial court for a fresh decision without addressing the merits of the case. The appellants have now challenged this remand order through instant FAO asserting that the Appellate Court ought to have proceeded to decide the case itself after obtaining the amended plaint and required evidence, instead of remanding it.

10. The dispute is undeniably civil in nature, having been initiated by the appellants through the filing of a suit. The respondents have already submitted their respective written statements. The appellants' contention that instead of remanding the matter to the trial court, the appellate court should decide the lis itself is misconceived and legally untenable. In civil litigation, pleadings form the foundational basis of the case, and any departure from the pleaded stance carries no legal sanctity. In the present case, it is an admitted position that certain parties were impleaded at the appellate stage, yet they neither filed their written statements nor adduced any evidence, thereby depriving them of a fair opportunity to contest the case.

11. It is an established rule of procedural law that Courts should provide parties a full and fair opportunity to prove their case. These procedural safeguards govern the proceedings to ensure fairness and strict adherence to procedures is mandatory. Non compliance can attract legal consequences.

12. There is no cavil to legal proposition that under Section 107 and Order 41 Rule 24 Civil Procedure Code, 1908, an appellate court can decide a case itself if sufficient material is available on record. Furthermore, the court can add or remove parties under Order 1 Rule 10 CPC, either suo moto or on a party's application. However, the court must ensure that the rights of all parties, especially those added at the appellate stage, are protected and afforded a fair opportunity to present their case.

13. It is trite law that in case new parties are added at the appellate stage, they must be given a fair opportunity to present their case. Given the importance of pleadings in civil disputes, and to ensure justice is served, the case should be remanded to the trial court under Order 41 Rule 23 CPC, allowing the new parties to file their pleadings and participate in the proceedings. Reliance can be placed on the cases of Mian Zafar Ali and another vs. Mian Khursheed Ali (2020 SCMR 291), Mian Javed Akhtar and another vs. Rana Muhammad Ismail and others (2024 YLR 251) and Divisional Superintendent Pakistan Railways through Authority/Authorized Officer vs. Taj Muhammad Khan (2024 CLC 1293).

14. No one should be condemned unheard. This fundamental principle of law guides Court to protect the rights of all parties involved. The process must uphold the principles of natural justice and fair trial, ensuring that no party suffers prejudice during adjudication.

15. The remand order by the learned appellate court is grounded in settled principles of law, administration of justice, and precedents established by this Court and the Honorable Supreme Court of Pakistan, particularly considering that the legal heirs of the deceased were added at the appellate stage, ensuring due process and adherence to legal norms.

16. In view of the foregoing discussion, this Court finds no legal infirmity or jurisdictional error in the impugned remand order passed by the learned Appellate Court. The same is based

on sound legal reasoning, ensures adherence to due process, and upholds the principles of fair trial. Accordingly, this appeal being devoid of merit is hereby **dismissed in limine**. No order as to costs.

(Syed Ahsan Raza Kazmi)
Judge

Approved for Reporting

Judge

Riaz Anjum